



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00032 Whitney Ranch, 3rd Filing Annexation
Date: March 8, 2021

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 3/8/2021
- Public Services Committee 3/16/2021
- 2nd reading 3/22/2021
- Public Services Committee 4/6/2021
- Third and final reading 4/12/2021

Related Items:

- Whitney Ranch, 3rd Filing Zone Change (UDC-21-00033)
- Whitney Ranch, 3rd Filing Final Plat (UDC-21-00034)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTH OF DELL RANGE BOULEVARD, WEST OF WHITNEY ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Gysel Whitney, LLC, owners of:

A parcel of un-platted land being situated in a portion of the southwest one-quarter of Section 23, Township 14 North, Range 66 West of the Sixth Principal Meridian. the exterior boundary of said parcels being more particularly described by metes and bounds as follows: commencing at the City of Cheyenne control point "Dell Range." thence N72°33'00"W a distance of 4993.09' to a point on the northerly line of Whitney Ranch 1st Filing, said point also being the northeast corner of Lot 8 Block 3 of Whitney Ranch 1st Filing, thence along said line N89°47'53"W a distance of 531.87' to a point and also being the true point of beginning; thence continuing along the said north line of Whitney Ranch 1st Filing N89°47'53"W a distance of 2660.39' to a point on the west line of the southwest quarter Section 23, thence along the west line of said southwest quarter N00°03'31"E a distance of 891.37' to a point, thence leaving the west line of said southwest quarter S89°56'29"E a distance of 504.64' to a point, thence S00°12'07"W a distance of 322.63' to a point, thence S89°47'53"E a distance of 775.97' to a point, thence N00°05'24"E a distance of 129.04' to a point, thence S89°54'36"E a distance of 404.12' to a point, thence S00°05'24"W a distance of 215.93' to a point, thence S89°13'38"E a distance of 550.85' to a point, thence N90°00'00"E a distance of 56.99' to a point, thence S00°05'24"W a distance of 167.73' to a point, thence S89°58'29"E a distance of 371.45' to a point, thence S00°13'50"W a distance of 273.61' plus or minus to the true point of beginning

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-2 Agricultural by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

March 8, 2021

STAFF REPORT

FILE: UDC-21-00032: Annexation of Whitney Ranch, 3rd Filing

REQUEST: An annexation of 35.7 acres of land

LOCATION: North of Dell Range Boulevard, west of Whitney Road.

APPLICANT: Whitney Ranch, LLC

AGENT: Brad Emmons, AVI, PC

OWNER: Gysel Whitney, LLC

PURPOSE: To allow urban-level residential development

PREPARED BY: Seth Lloyd, Planner II - Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing of 35.7 acres of land for future single-unit residential development. The County Assessor presently shows the tract of land as part of one larger unplatted parcel. The land is currently undeveloped in the County. A zone change and plat are proposed concurrently with this annexation. All three applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County A-2 Agricultural to the City zone of MR Medium-density Residential.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County A-2	Undeveloped
North	Urban Residential	County A-2	Undeveloped
South	Urban Residential	MR	Single-family Residential
East	Urban Residential	County A-2	Undeveloped
West	Urban Residential	MR	Single-family Residential

The property is currently zoned A-2 Agricultural in the County. The property is concurrently proposed to be annexed and rezoned to the MR Medium-density Residential. The MR zone is generally described as a primarily residential zone with compact neighborhood development patterns. The district generally allows a variety of residential uses with some smaller-scale civic or commercial uses.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the occupants of future development once it is built. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property will also be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The contiguity to the west and south makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. City water and sewer lines exist in the vicinity and could be extended with the development of the property.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation are about 47.8% contiguous, along the western and southern edges.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on February 5, 2021. The public hearing for this annexation is scheduled for March 8, 2021. Twenty (20) business days prior to the announced public hearing is February 5, 2021. The earliest confirmation of receipt was dated February 6, 2021.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with an urban residential style of development. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. Policies in PlanCheyenne support development within the Urban Service Boundary and the utilization of existing infrastructure.

STAFF REVIEW:

Through the review process, no comments were made on the proposed annexation.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to this property.

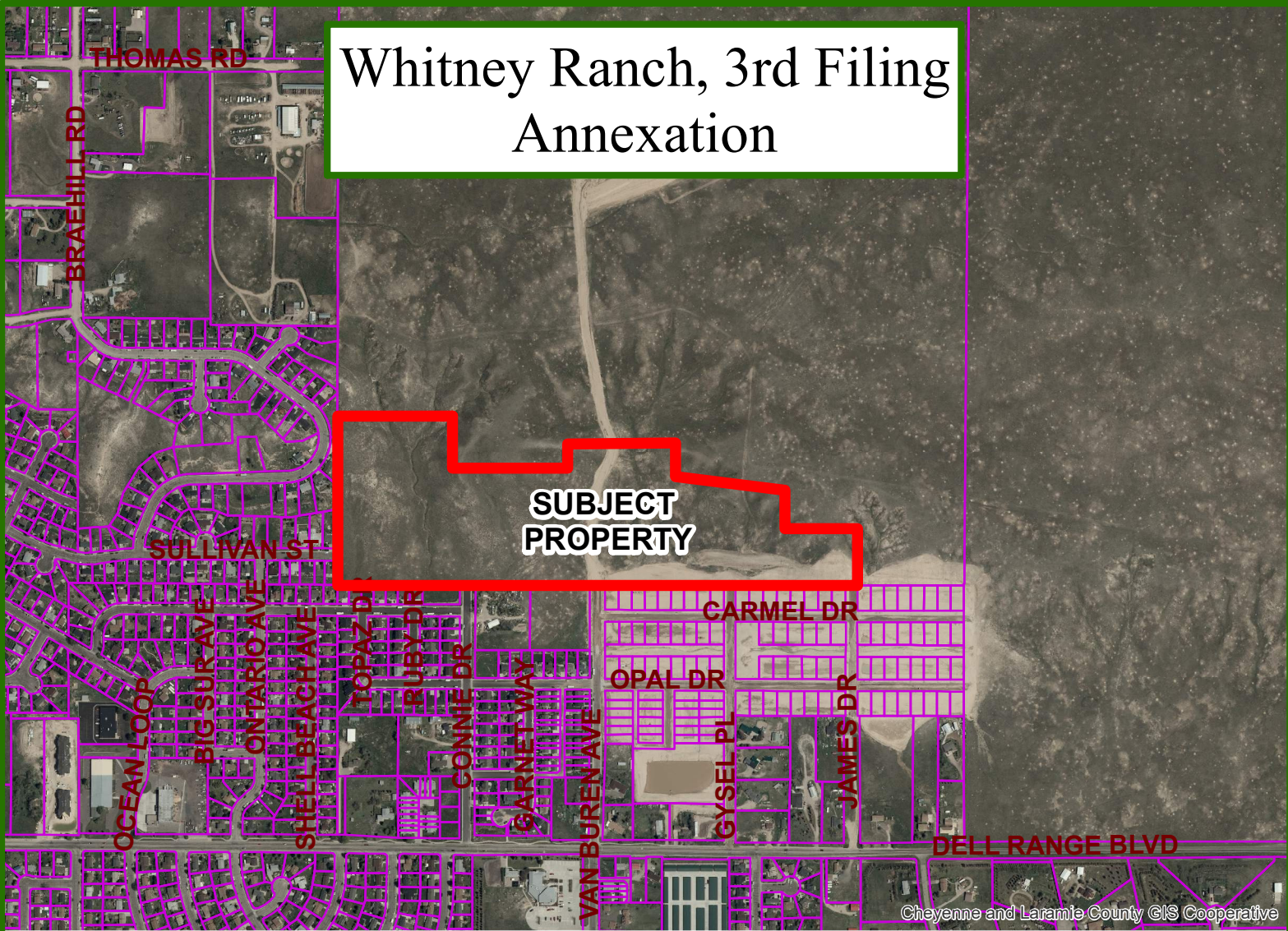
STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

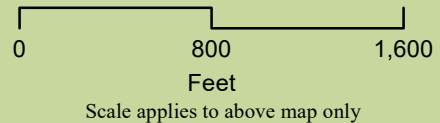
1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map
4. Supporting photos

Whitney Ranch, 3rd Filing Annexation

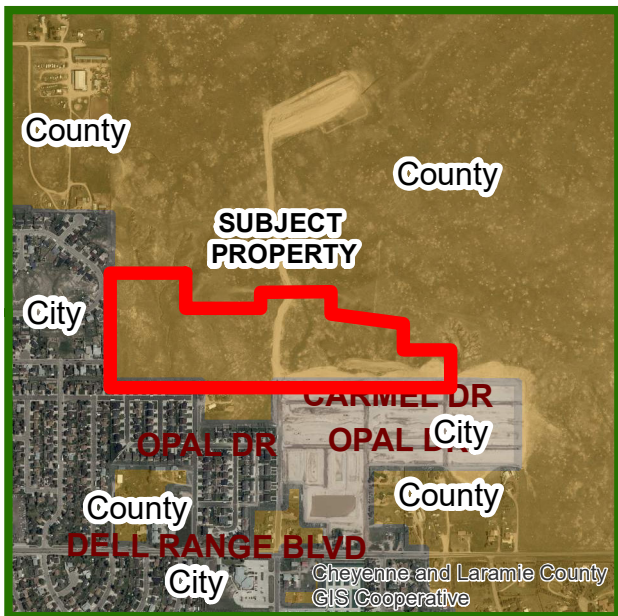


Application Number
Annexation
UDC-21-00032

Applicant: AVI, PC
Brad Emmons, AICP
Owner: Gysel Whitney, LLC

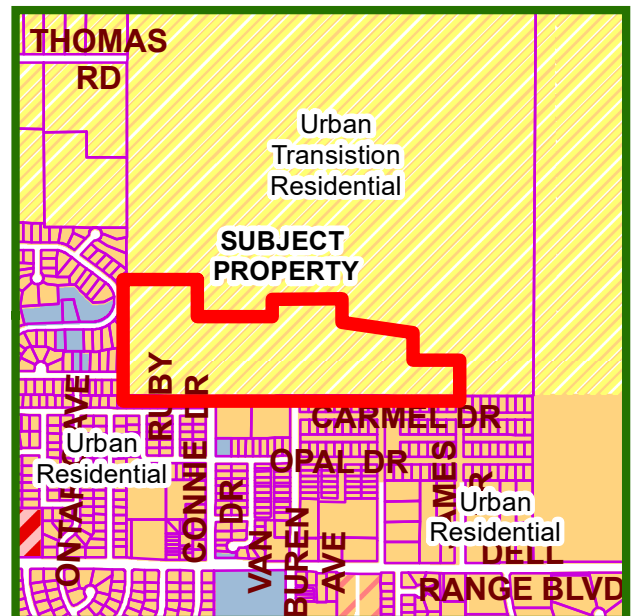


Current City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Annexation Application

Submission date: **27 January 2021, 4:30PM**

Receipt number: **3**

Related form version: **8**

General Information

Applicant Name: **Whitney Ranch LLC**

Applicant Address: **6636 Cedar Avenue S. Suite 300**

Applicant City: **Richfield**

Applicant State: **MN**

Applicant Zip Code: **55423**

Applicant Phone: **6126192200**

Applicant Email: **ross@guardianmn.com**

Representative Name: **AVI - Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **+13076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Gysel Whitney LLC**

Owner Address: **PO Box 72**

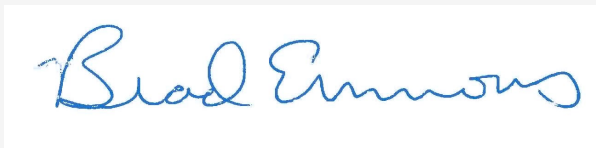
Owner City: **Albin**

Owner State:	WY
Owner Zip Code:	82050
Owner Phone:	3072463294
Owner Email:	bholgerson@rtconnect.net
Who is the primary contact regarding this application?	Representative
Letter of Authorization	loa gysel whitney_001.pdf
Project Location (Street Address or General Location):	East of the east end of Sullivan Street north of Carmel Drive
Assessor's Parcel ID number(s)	R0018370
Total Project Area	35.69
Current Zoning	County A-2
Proposed Zoning	MR - Medium-density Residential

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	unplatted
Formal Annexation Petition	annex-GW.pdf
Board of Public Utilities Clearance Form	20210127_Whitney F3 Annex Clearance_signed.pdf
Annexation Map	4253_FINAL PLAT 1-25-2020-ANNEXATION MAP.pdf

Signature / Certification

Applicant Signature	Name of signatory: Brad Emmons  Uploaded signature image: brad emmons.jpg
---------------------	---

Please enter an email address for an email receipt.

emmons@avipc.com

